

SENATE No. 354

The Commonwealth of Massachusetts

PRESENTED BY:

Ryan C. Fattman

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing funds to provide for increases in English language learners in school districts.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/27/2025</i>

SENATE No. 354

By Mr. Fattman, a petition (accompanied by bill, Senate, No. 354) of Ryan C. Fattman and Bruce E. Tarr for legislation to establish funds to provide for increases in English language learners in school districts. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 270 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing funds to provide for increases in English language learners in school districts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 71A of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by adding the following section:-

3 Section 13. (a) Subject to appropriation, for each fiscal year commencing with the fiscal
4 year that this section is enacted, any school district that has experienced at least a 20-student
5 increase over the prior fiscal year in the number of students who are classified as English
6 learners shall receive an additional cost reimbursement from the Commonwealth for such
7 English learners in the current fiscal year. This reimbursement shall be equal to the positive
8 difference, if any, between: (i) the number of English learners on October 1 of the prior fiscal
9 year and (ii) the number of English learners students for the current fiscal year as measured by

the census of such students on October 1 of that fiscal year, an shall be in an amount for each such student equal to the amount of reimbursement provided for in Chapter 70 for an English learner for that school district.

(b) A school district eligible for additional cost reimbursement shall receive an advance allotment payment from the Commonwealth as calculated by subsection (a), no later than the close of the first monthly accounting period in such fiscal year. Said additional cost reimbursements shall be kept in a separate fund by the state treasurer and shall be disbursed by the state treasurer at the direction of the commissioner of the board of education to the school district. Reimbursement to a school district pursuant to this section shall be in addition to any other reimbursement or a grant pursuant to Title III of Public Law 107-110.